

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12 (Hon. Nahal Iravani-Sani)

Hon. Jose S. Franco, Presiding

Courtroom Clerk, Ryan Nguyen

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2230

DATE: 7/10/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE 3	24CV428712	Belen Ibanez vs Javier Ibanez et al	Hearing on Motion to Deem Requests for Admissions, Set One, Admitted and Monetary Sanctions Defendant filed this motion on March 2, 2026 relative to the initial Request for Admissions, Set One served on Plaintiff on October 7, 2025 and due on November 10, 2025, and was followed by an extension of the due date to November 24, 2025 and when no response was provided a meet and confer letter on December 10, 2025 requesting verified responses without objection. Plaintiff's opposition was filed on June 9, 2026, indicating that a response to the Request for Admissions, Set One was served on April 20, 2026 and arguing that the motion is moot. Defendant filed a Reply on July 1, 2026 acknowledging the belated compliance and arguing a disregard and misuse of the discovery process that necessitated the filing of this motion. The Court has carefully reviewed the moving papers, including the declarations of counsel and attachments in all three filings related to this motion, and has taken note of the procedural history as noted in the filings by both parties. Defendant's motion for Request for Admissions, Set One is DENIED as moot. No evidence being presented by Plaintiff of a substantial justification or circumstances making the imposition of the sanctions unjust (for a 90-day delay) and necessitating the filing of this motion by Defendant, the Request for Sanctions pursuant to Code of Civil Procedure sections 2023.280 and 2023.030 is GRANTED. The Court orders Sanctions in the amount of \$595 (the filing fee of \$60, one hour of paralegal work at a rate of \$175/hour, and \$360 for .6 hours of work at the attorney rate of \$600/hour) to be paid within 20 days of the filing of this order. Moving party (Defendant) to prepare the order.
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LINE 4	24CV434443	Stephen Zhao et al vs Tamura Designs, Inc. et al	Hearing on Motion to Vacate Dismissal (CCP section 473) Plaintiff filed a motion to vacate the Court's dismissal order on February 18, 2026 pursuant to Code of Civil Procedure section 473, along with a declaration of counsel but without a proof of service attached or filed. Defendant filed opposition papers on June 26, 2026, with a declaration of counsel, Exhibits A-F, and proof of service. Plaintiff's reply was filed on July 2, 2026. The Court has carefully reviewed the moving papers, including the declarations of counsel, and accompanying exhibits in all three filings related to this motion, and has taken note of the procedural history as noted in the filings by both parties. Timeliness of Motion Under California law, the six-month jurisdictional period to seek relief from a dismissal under Code of Civil Procedure Section 473, subdivision (b) begins to run from the entry of the dismissal, rather than from a prior oral pronouncement. (Code of Civ. Proc. § 473; <i>Austin v. Los Angeles Unified School Dist.</i> (2016), 244 Cal. App. 4th 918.) In this case, because the statute requires an application for relief to be made no more than "six months after entry of judgment" or after the dismissal "was taken," the six-month limitation period is triggered by the formal entry of the written dismissal order on August 19, 2025, rather than the oral pronouncement on August 1, 2025. Although a court minute order from the August 1, 2025 oral order of dismissal was filed, the six-month jurisdictional period begins to run only upon the filing of a formal written order of dismissal signed by the court, rather than the entry of a minute order. (Code Civ. Proc. § 581d). A dismissal noted in a minute order is legally insufficient to constitute the "entry" of dismissal that triggers the Section 473(b) six-month limitation period. (Code of Civ. Proc, § 581d.) Section 581d. explicitly establishes the requirements for entering a dismissal in that all dismissals ordered by the court must be in the form of a written order signed by the court and filed in the action to "constitute judgments and be effective for all purposes". Because section 581d. mandates a signed, written order for a dismissal to be effective "for all purposes," a mere notation of a dismissal in a minute order does not meet the statutory definition of an "entered" dismissal or judgment.
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